

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA

Court of Appeal Case No:
CA(PHC) 0135/20

PHC Case No: HCRA98/19

Magistrate Court Case No:
25663

In the matter of an application an
appeal under Article 138 of the
Constitution.

Cooperative Deputy Commissioner
(Colombo),

No. 72, Mahamegha Watta,
Maharagama.

Applicant

Vs.

Yatiana Arachchige Sujeewa,

No. 70/, Suramya Mawatha,
Elhena Road,
Maharagama.

Respondent

AND

Yatiana Arachchige Sujeewa,

No. 70/, Suramya Mawatha,
Elhena Road, Maharagama.

Respondent- Petitioner

Vs.

Cooperative Deputy Commissioner
(Colombo),

No. 72, Mahamegha Watta,
Maharagama.

Applicant-Respondent

AND BETWEEN

Yatiyana Arachchige Sujeewa,

No. 70/, Suramya Mawatha,

Elhena Road,

Maharagama.

Respondent- Petitioner-Appellant

Vs.

**Cooperative Deputy Commissioner
(Colombo),**

No. 72, Mahamegha Watta,

Maharagama

Applicant-Respondent-Respondent

AND NOW BETWEEN

Yatiyana Arachchige Sujeewa,

No. 70/, Suramya Mawatha,

Elhena Road, Maharagama.

**Respondent- Petitioner-Appellant-
Petitioner**

Vs.

**Cooperative Deputy Commissioner
(Colombo),**

No. 72, Mahamegha Watta,

Maharagama.

**Applicant-Respondent-
Respondent-Respondent**

Before : **D. THOTAWATTA, J.**
K. M. S. DISSANAYAKE, J.

Counsel : Thishya Weragoda with
Wasana Nalawatta instructed by Niluka
Dissanayake for the Respondent-
Petitioner-Appellant-Petitioner.

Panchali Witharana, SC for the
Applicant-Respondent-Respondent-
Respondent.

Argument concluded on : 07.07.2026

Written Submissions
of the Respondent-Petitioner
-Appellant-Petitioner
tendered on : Not tendered.

Written Submissions
of the Applicant-Respondent
-Respondent-Respondent
tendered on : Not tendered.

Decided on : 24.09.2026

K. M. S. DISSANAYAKE, J.

The instant appeal arises from an order dated 20.08.2020 (hereinafter called and referred to as “the principle order”) made by the learned High Court Judge of the Western Province holden in Colombo (hereinafter called and referred to as “the learned High Court Judge”) in the exercise of the revisionary jurisdiction vested in it by Article 154P(3)(b) of the Constitution of the

Democratic Socialist Republic of Sri Lanka (hereinafter called and referred to as “the Constitution”).

The Respondent-Petitioner-Appellant-Petitioner (hereinafter called and referred to as “the Petitioner”) in prayer ‘b’ of the petition filed along with the instant application dated 22.06.2026, seeks an appropriate interim order staying the proceedings of the Magistrate of Nugegoda in case No. 25663 and/or to maintain *status quo* until final determination of the instant application on the grounds urged in paragraph 10 (a), (b) and (c) of the petition which application was opposed by the learned State Counsel for the Applicant-Respondent-Respondent-Respondent (hereinafter called and referred to as “Respondent”).

The principal ground urged in paragraph 10 (a) of the petition in support of the instant application for an appropriate interim order staying the proceedings of the Magistrate of Nugegoda in case No. 25663 and/or to maintain *status quo* until final determination of the instant application being; **If a prison sentence is imposed against the Appellant by the Magistrate Court and in the event of the Appellant being successful in this matter before Your Lordships' Court, the final Judgement will be rendered futile or nugatory as the punishment would forthwith be imposed in the Appellant.** Hence, the burden of proof thereof, will solely, rest on the Appellant. Now, the pivotal question is whether the Appellant has been successful in discharging the burden of proof so rested in him.

It may now, be examined.

Upon a careful perusal of the averments in the petition in its totality, it manifestly, appears that, no reason whatsoever, has been adduced by the Petitioner in support of the principal ground so urged in paragraph 10(a) of the petition in the first place, nor, has he shown even in the course of the argument before us in support thereof, any such ground other than merely, re-iterating what has been stated in his petition in the second place.

I would therefore, hold that, the instant application is not entitled to succeed both in fact and law for want of proof thereof.

Besides, upon a careful perusal of the principal order sought to be impugned by the Petitioner in the instant appeal in its totality, it *prima facie*, appears that, the learned High Court Judge has rightly, and properly, taken into his consideration in determining the application in revision filed before him by the Petitioner the fact that, the Petitioner has obtained a loan from the Respondent in respect of which Arbitral award has been made by the Respondent against him which fact had never been denied and/or challenged and/or controverted by the Petitioner even before any of the Courts, namely; the Magistrate Court and the High Court.

Furthermore, the learned High Court Judge had clearly, observed that the documents 'X4' to 'X11' that had been produced before him in the application in revision for the first time, by the Petitioner, which documents were alleged to have been forged by the Respondent which fact too, was never sought to be challenged and/or controverted and/or refuted and/or disproved by the Petitioner by proof on the contrary before the High Court.

Moreover, the learned High Court Judge had in the principal order, further observed that, the learned Magistrate had acted strictly, in accordance with the law in passing the order sought to be impugned by the Petitioner before the learned High Court Judge in his application in revision and therefore, there has been no illegality, nor irrationality nor procedural impropriety in the order, all of which would *prima facie*, direct to the point that principal order sought to be impugned by the Petitioner in the instant appeal has no merit.

Furthermore, the learned High Court Judge had observed that it is also an uncontroverted fact that, the Petitioner had obtained a further loan of Thirteen Million Rupees from the Respondent, repayment of which too, had been defaulted by the Petitioner thereby, showing his conduct which disentitles him for the remedy sought in his application in revision made before him.

Hence, it would become abundantly, clear that it would be most unlikely, that the Petitioner would succeed in the instant appeal at the end.

In the circumstances, it cannot be *prima facie*, said that, whatever the order that may be pronounced by this Court in the principal appeal, would become nugatory if not granted, an interim order of kind as asked for by the Petitioner in paragraph 10 (a) of his petition at this juncture.

I would therefore, hold that the principal ground urged by the Petitioner in paragraph 10(a) of the petition cannot sustain both in fact and law which follows that the other two consequential and/or ancillary grounds urged by the Petitioner in paragraph 10(b) and (c) too, would not be entitled to succeed.

In view of the foregoings, I would hold that the Petitioner has not made out a strong *prima facie* case for an interim order of kind as asked for in prayer 'b' of his petition.

In the result, I would dismiss the instant application for an interim order of kind as asked for in prayer 'b' of his petition however, without cost.

JUDGE OF THE COURT OF APPEAL

D. THOTAWATTA, J.

I agree.

JUDGE OF THE COURT OF APPEAL